

Panchayats

The idea of Panchayati Raj forms the basis of Gandhian philosophy that considers village councils as the units of self-governance. Rajasthan was the first state to set-up Panchayati Raj on 2nd October, 1959 followed by Andhra Pradesh.

Duration and Election

- Its duration five years from the day appointed for its first meeting.
- Before the expiry of its duration.
- Before the expiry of a period of 6 months from the date of its dissolution. Provided that where the remainder of the period for which the dissolved Panchayat would have continued is less than 6 months, it shall not be necessary to hold any election for such period.
- Minimum age required to contest for election is 21 years.

Reservation of Seats

Seats shall be compulsorily reserved for women Scheduled Castes and Scheduled Tribes. Seats to be reserved for backward classes is left at the discretion of the State Government one-third of the seats are reserved for women. In some states like Bihar, 50% seats are reserved for women.

Municipalities

- They are eight types of urban local body in India – Notified Area Committee, Town Area Committee, Municipal Corporation, Municipality, Cantonment Board, Township, Port trust and Special Purpose Agency.
- The first municipal corporation was established in Madras Presidency in 1688.

Duration and Election

- Election must be held before the expiry of its duration of 5 years.
- Election must be held before the expiration of a period of 6 months from the date of its dissolution.

Reservation of Seats

- There will be the reservation of seats for the Scheduled Castes and the Scheduled Tribes in every municipality in proportion of their population to the total population in the municipal area.
- It also provides for the reservation of not less than one-third of the total number of seats for women (including the number of seats reserved for women belonging to the SCs and STs).

Constitutional Bodies

Constitutional body is the body that has its name mentioned in the Constitution of India. It derives power directly from the Constitution. Any type of change in mechanism of this body needs constitutional amendment. *Such bodies are as follows*

Election Commission

- The Election Commission is a permanent and an independent body established by the Constitution of India directly to ensure free and fair elections in the country.
- Article 324 of the Constitution provides that the power of superintendence, direction and control of elections to Parliament, state legislatures, the office of President of India and the office of Vice-President of India shall be vested in the election commission.
- The Election Commission shall consists of the Chief Election Commissioner and such number of other election commissioners, if any, as the President may from time to time fix. They hold office for a term of 6 years or until they attain the age of 65 years, whichever is earlier.
- He can be removed by the President on the basis of a resolution passed to that effect by both the Houses of Parliament with special majority, either on the ground of proved misbehaviour or incapacity.



NATIONAL PARTY

It should secure not less than 6% of the total valid votes polled in its state during a general election. Besides, it has attained at least 4 members to Lok Sabha.

STATE PARTY

It should secure not less than 6% of the total valid votes in that state in general election, besides attaining at least two members to the Legislative Assembly of that state at the last assembly elections.

Public Service Commission

The Public Service Commission is divided into two categories namely; Union Public Service Commission and State Public Service Commission.

Union Public Service Commission (UPSC)

- It is the central recruiting agency in India. Articles 315 to 323 in Part XIV of the Constitution deal with the UPSC.
- The UPSC consists of a chairman and other members appointed by the President of India. The strength of the Commission has been decided by the President.
- The chairman and members of the Commission hold office for a term of six years or until they attain the age of 65 years, whichever is earlier.
- The chairman or a member of the UPSC can be removed from office by the President only in the manner and on the grounds mentioned in the Constitution.

State Public Service Commission (SPSC)

- Parallel to UPSC at the Centre, there is a SPSC in a state. It consists of a chairman and other members appointed by the Governor of the State.
- The chairman and members of the Commission hold office for a term of six years or until they attain the age of 62 years, whichever is earlier.

National Commission for Scheduled Castes

- The National Commission for Scheduled Castes (SCs) is a constitutional body in the sense that it is directly established by Article 338 of the Constitution.
- The main function of the Commission is to investigate and monitor all matters relating to the constitutional and other legal safeguards for the SCs and to evaluate their working.
- The Commission also has to investigate all matters relating to the constitutional and other legal safeguards for the OBCs and the Anglo-Indian Community and report to the President upon their working.
- They are appointed by the President by warrant under his hand and seal. Their conditions of service and tenure of office are also determined by the President.
- The Commission presents an annual report to the President. It can also submit a report as and when it thinks necessary.

National Commission for Scheduled Tribes

- The National Commission for Scheduled Tribes (STs) is a constitutional body in the sense that it is directly established by Article 338-A of the Constitution.
- The 89th Constitutional Amendment Act of 2003 bifurcated and combined National Commission for SCs and STs into two separate bodies namely; National Commission for Scheduled Castes (under Article 338) and National Commission for Scheduled Tribes (under Article 338-A).
- The main function of the Commission is to investigate and monitor all matters relating to the constitutional and other legal safeguards for the STs and to evaluate their working.

Finance Commission (Article 280) Composition

- Under Article 280 of the Constitution, provision has been made for the Constitution of a Finance Commission within two years of the commencement of the Constitution and thereafter on the expiry of 5th year. It consists of a Chairman and four other members appointed by the President.

- 13th Finance Commission, headed by Vijay Kelkar, submitted its report for the period 2010-15. Finance Commission, headed by YV Reddy, has been appointed. Its report will apply for the period 2015-20.
- The 14th Finance Commission has been specifically asked to recommend how non-priority PSUs be relinquished, besides its other constitutional duties.

Functions

It is duty of the Finance Commission to make recommendations to the President as to :

- the distribution between the Union and States of net proceeds of the taxes which are divisible between the Union and the States.
- the principles which should govern the grants-in-aid of a revenue to the states out of Consolidated Funds of India.
- any other matter referred to the commission by the President in the interest of sound finance.

Comptroller and Auditor General of India

He is appointed by the President for control and audit of public accounts. He does not hold his office till the pleasure of the President. He is not eligible for further office.

Functions

His main functions are as follows :

- He audits the account related to all expenditure from consolidated and contingency fund of India, each state and UT's having a Legislative Assembly.
- He acts as a guide, friend and philosopher of the Public Account Committee of the Parliament.
- To keep a vigilant watch on the finance of Union and the States.
- To submit periodic reports to the President and Governors of State for consideration of Parliament and State Legislature.
- To see that the amount voted by the legislature are spent under appropriate heads and they are not exceeded.

Non-Constitutional Bodies

Non-Constitutional bodies are the bodies that are established either by an executive resolution of the Government of India or by a legislation enacted by the Parliament or even by any official Gazette notification issued by the Central Government.

Planning Commission

The Planning Commission was an institution in the Government of India, which formulated India's Five-Year Plans. The Government has replaced Planning Commission with a new institution named NITI Aayog (National Institution for Transforming India).

National Development Council

- It is the open body for decision making and deliberation on development matters in India presided over by Prime Minister.
- The council comprises the Prime Minister, the Union Cabinet Ministers, Chief Ministers of all States, Representation of the Union Territories and members of the planning commission.
- It is an extra-constitutional and non-statutory body. It is listed as an advisory body to planning commission but its advice is not binding.

NITI Aayog

- The institution will serve as ‘Think Tank’ of the Government, a directional and policy dynamo.
- NITI Aayog will provide governments and the central and state levels with relevant strategic and technical advice across the spectrum of key elements of policy. This includes matters of national and international importance. PM is the ex-officio chairman of NITI Aayog.

Functions of NITI Aayog

- To foster cooperative federalism through structured support initiatives and mechanisms with the states on a continuous basis, recognising that strong states make a strong nation.
- To develop mechanisms to formulate credible plans at the village level and aggregate these progressively at higher levels of government.
- To ensure, on areas that are specifically referred to it, that the interest of national security are incorporated in economic strategy and policy. To pay special attention to the sections of our society that may be at risk of not benefitting adequately from economic progress.
- To provide advice and encourage partnerships between key stakeholders and national and international like-minded Think Tanks, as well as educational and policy research institutions.

State Finance Commission

There is a provision of State Finance Commission to review the financial position of Panchayats and recommended grant-in-aid. It shall make the following recommendation to the governor.

Lokpal and Lokayuktas

The Lokpal and Lokayuktas Act, 2013 was made by the Parliament to provide for the establishment of body of Lokpal for the Union and Lokayukta for state to inquire into allegations of corruptions against certain public functionaries and for matters concerning them.

Salient Features of Lokpal and Lokayuktas Act

- Lokpal bill consist of a chairperson and a maximum of eight members of which 50% shall be judicial members. 50% of members of Lokpal shall be from SC/ST/OBCs, minorities and women.
- The selection of chairperson and members of Lokpal shall be through a selection committee consist of
 1. Prime Minister
 2. Speaker of Lok Sabha
 3. Leader of opposition in Lok Sabha
 4. Chief Justice of India or a sitting Judge of Supreme Court nominated by CJI.
 5. Eminent jurist on the basis of recommendations of the first four members of the selection committee. Prime Minister has been brought under the purview of the Lokpal.

National Human Rights Commission

- The National Human Rights Commission is a statutory body. It was established in 1993 under a legislation enacted by the Parliament. The Commission is a multi-member body consisting of a chairman and four members. The chairman should be retired chief justice of India. In case State Human Rights Commission, the chairperson should be a retired Chief Justice of a High Court.
- The chairman and members hold office for a term of 5 years or until they attain the age of 70 years, whichever is earlier. After their tenure, the chairman and members are not eligible for further employment under the Central or a State Government.

National Commission for Minorities (NCM)

- The Union Government set-up the National Commission for Minorities under the National Commission for Minorities Act, 1992. Six religious communities namely; Muslims, Christians, Sikhs, Buddhists, Parsis and Jains have been notified as minority communities by the Union Government.
- The Commission has one Chairperson and five Members represented five minority communities. The Commission consists of President, a Vice-President and five other members from minorities group.

CENTRE-STATE RELATION

The Constitution of India, being federal in structure, divides all powers (legislative, executive and financial) between the centre and the states.

The centre-state relations can be studied under three heads, which are as follow

- i. Legislative relations
- ii. Administrative relations
- iii. Financial relations

It deals with the relations between union and states. The centres and states are an essential feature of federalism.

Legislative Relations

- The Constitution divides the subjects into the Union List (100 subjects), the State List (61 subjects) and the Concurrent List (52 subjects). Enumerated in the Seventh Schedule under Article 246. Parliament has exclusive power to legislate on subjects mentioned in the Union List. This list contains subjects like defence, foreign affairs, atomic energy etc.
- State legislatures have exclusive power to legislate on subjects mentioned in the State List. The State List contains subjects like health, sanitation, public order, agriculture etc. Both Parliament and State Legislatures can legislate on subjects mentioned in the Concurrent List. This list contains subjects like criminal law, forests, education, marriage and divorce etc.
- **Residual Powers** (i.e. subjects not included in any of the list) rest with Union Government.

Administrative Relations

The states are expected to comply with the Laws of the Parliament and not impede the exercise of the Executive Powers of the Union (Articles 256 and 257). In this regard, the Union Government can issue necessary directives to the states. All disputes between states regarding the use, distribution or control of water are decided by the centre (Article 262).

Financial Relations

- The states are greatly dependent on the Central Government for finance. The State Governments have been provided independent sources of revenue, but these are inadequate.
- The Union Government has the power to borrow from within India or outside, subject to the limits laid down by the Parliament, the borrowing power of the states is subject to several limitations and the cannot borrow from outside India.

Zonal Councils

Six zonal councils have been established to discuss and advise on matters of common interest. The Union Home Minister has been nominated to be the common Chairman of all Zonal Councils. Set-up under State Reorganisation Act, 1956.

Northern Zonal Council Consist of Punjab, Rajasthan, Haryana, Jammu and Kashmir, Himachal Pradesh, Chandigarh and Delhi. Headquarter New Delhi

Central Zonal Council Uttar Pradesh, Uttarakhand, Chhattisgarh and Madhya Pradesh. Headquarter Allahabad

Eastern Zonal Council Bihar, Jharkhand, West Bengal and Odisha. Headquarter Kolkata

Western Zonal Council Maharashtra, Goa, Gujarat and UTs of Dadra and Nagar Haveli and Daman Diu. Headquarter Mumbai

Southern Zonal Council Andhra Pradesh, Tamil Nadu, Karnataka, Kerala and UT of Puducherry. Headquarter Chennai

North-Eastern Council It was created in 1971 by a separate Act of Parliament for Assam, Manipur, Tripura, Meghalaya, Nagaland, Mizoram and Arunachal Pradesh. In 1994, Sikkim was included in it.

- *The issues in centre-state relations have been under consideration. Time to time government appoints commission for betterment of the relation.*

SARKARIA COMMISSION

It was set-up in June, 1983, by the Central Government of India to examine the relationship and balance of power between states and centre. It was headed by Justice Rajinder Singh Sarkaria, a retired Judge of the Supreme Court of India.

PUNCHHI COMMISSION

In April, 2007, a new commission was set-up to re-examine centre-state relations. The commission was headed by former Chief Justice of India MM Punchhi.

Inter-State Council

- Inter-State Council serves a purposeful mechanism to bring various autonomous executive agencies of the state machinery, both the union and the states, and coordinate amongst them the ways and means of execution and implementation of policies concerning common interests, both regional as well as national.
- Although a provision was made in the Constitution under **Article 262** for the formation of such Inter-State Council, it was not until 1990, a formal Inter-State Council was established.
- This measure was taken after the Sakaria Commission pitched for the formation of such a council.

Types of Emergency

The President is empowered to promulgate three kinds of emergencies which are as follows :

- On the ground of threat to the security of India or of any part of the territory by war or an external aggression or an armed rebellion (Article 352) known as **National Emergency**.
- On the ground of the failure of the constitutional machinery in a state. (Article 356) known as the **President's Rule or State Emergency**.
- On the ground of threat to the financial stability or credit of India or any part of the territory (Article 360), known as **Financial Emergency**.

National Emergency (Article 352)

- If the President is satisfied that a grave emergency exists whereby the security of India or any part of India is threatened, whether by a war or an external aggression or an armed rebellion, he/she may proclaim a state of emergency for the whole of India or part of the territory thereof.
- A proclamation of emergency can be made by the President, even before the actual occurrence of war or external aggression or armed rebellion, if he/she is satisfied that there is an imminent danger.
- When a national emergency is declared on the ground of 'war' or 'external aggression' it is known as External Emergency. On the other hand, when it is declared on the ground of 'armed rebellion' it is known as Internal Emergency.

President's Rule or State Emergency (Article 356)

- The President's Rule can be proclaimed under **Articles 355, 356 and 365**. **Article 355** says it shall be the duty of the union to protect every state against external aggression and internal disturbance and to ensure that the government of every state is carried on in accordance with the provisions of this Constitution.
- **Article 356** says that if the President, on receipt of a report from the Governor of a State or otherwise, is satisfied that a situation has arisen in which the Government of the State cannot be carried on in accordance with the provisions of this Constitution, he/she may issue a proclamation.
- **Article 365** administration says that whenever a state fails to comply with or give effect to any direction from the centre, it will be lawful for the President to hold that a situation has arisen in which the government of the state cannot be carried on in accordance with the provisions of the Constitution.

Financial Emergency (Article 360)

- **Article 360** provides that if the President is satisfied that a situation has arisen whereby the financial stability of India or the credit of India or of any part of India is threatened, he/she may make a declaration to that effect. Under such situation, the executive and legislative powers will go to the center. This article has never been invoked till date.
- The proclamation of Financial Emergency shall ordinarily remain in force for a period of 2 months. However, it can continue to stay beyond 2 months if before the expiry of the 2 months period, the proclamation has been approved by both the Houses of the Parliament.
- If, at the time of proclamation of Financial Emergency, the Lok Sabha stands dissolved, the proclamation needs to be approved by the Lok Sabha within 30 days of its meeting after its reconstitution, provided in the meantime the Rajya Sabha has approved it.

- The National Emergency and Financial Emergency have no time limit. They can continue to be extended without any limit. But the State emergency has a time limit. It cannot go beyond 3 years.

E-Governance

The word *electronic* in the term e-Governance implies technology driven governance. e-Governance is the application of Information and Communication Technology (ICT) for delivering government services. e-Governance is basically a move toward **SMART** Governance i.e. Simple, Moral, Accountable, Responsive and Transparent Governance.

There are four types of interactions in e-Governance

1. G2B : Government to Business
2. G2C : Government to Citizens
3. G2E : Government to Employees
4. G2G : Government to Government



DIGITAL INDIA

It is a flagship e-Governance programme of Government of India with a vision to transform India into a digitally empowered society and knowledge economy.

The focus is to bring transformation to realise

IT	+IT	IT
(Indian Talent)	(Information Technology)	(India Tomorrow)

Mission Mode Projects (MMPs)

A Mission Mode Project (MMP) is an individual project within the National e-Governance Plan (NeGP) that focuses on one aspect of e-Governance, such as banking, land records or commercial taxes etc. Within NeGP, Mission Mode Project implies that projects have clearly defined objectives, scopes and implementation timelines and milestones, as well as measurable outcomes and service levels. NeGP comprises 31 Mission Mode Projects (MMPs), which are further classified as State, Central or Integrated Projects. Each State Government can also define five MMPs specific to its individual needs.

E-Panchayat

The Ministry of Panchayati Raj, Government of India has initiated e-Panchayat, a flagship project, computerisation of Gram Panchayats on a mission mode basis. After a detailed system study by NIC (National Informatics Centre), the department prioritised the applications to be automated for Gram Panchayats. The application areas are birth and death registrations, house tax assessment and demand collections and trade licences. The applications were developed and implemented in 475 Gram Panchayats identified by department. The software is web enabled and hosted on NIC central servers. The capacity building had been taken up at various levels by conducting State and District level workshops and the e-Panchayat project was initiated by Commissioner PR&RE in 2005.